

6.4. EPO communication concerning submissions by the other party – adequate opportunity to reply

Communications signed by the formalities officer and inviting the appellants to "take note" of the opponents' submissions are not communications of the opposition division within the meaning of Art. 101(1) EPC (Art. 101(2) EPC 1973), which require a period to be fixed for reply. It is at the discretion of the recipient to reply to this communication if he finds it necessary. If he intends to reply but for any reason is prevented from doing so within a reasonable period of time, then the appropriate action is to inform the opposition division of his difficulties (see T 582/95).

The boards of appeal have dealt in a series of decisions with the issue of determining what is a reasonable period which provides the recipient of an EPO communication with an adequate opportunity to reply:

In T 275/89 (OJ 1992, 126) the board noted that the opposition division had waited for somewhat longer than a month before taking its decision. In the board's view, in the case of a communication which was issued for information purposes only and which did not set a time limit for response, a period of **one month** (which in the present case was exceeded) sufficed as a rule to comply with the requirements of Art. 113 EPC. Moreover, the documents on which the decision under appeal was based had already been mentioned in the notice of opposition together with an assessment of their substantive and legal significance.

In T 263/93 the board held that the right to be heard enshrined in Art. 113(1) EPC requires that the party concerned be given **sufficient time** to submit an adequate response if the EPO decides to communicate to a party to proceedings before it an objection raised by another party without an express invitation to reply within a specified time limit. The question regarding what period of time is sufficient for this purpose is a **question of fact** which has to be answered on the basis of the merits of each individual case. The board further noted that, as a rule, a time limit set by the EPO should not be shorter than **two months** (see R. 132 EPC, former R. 84 EPC 1973). In the circumstances of T 263/93, where **difficult technical questions** had to be considered, the board came to the conclusion that the appellant's right to a fair procedure would have required the opposition division to have waited at least two months before issuing a decision based on the objections raised for the first time in this counterstatement. This was confirmed in T 1152/14.

In T 494/95, the board took the view that the interval of more than one month between the notification of the patent proprietor's reply to the opposition and the date of issuing the decision was sufficient to allow the appellant (opponent) a reasonable opportunity to present his comments, or **at least to indicate an intention** of so doing, or to request oral proceedings. In the board's view, it was clear from R. 57(3) EPC 1973 (R. 79(3) EPC), from the EPO information "Opposition Procedure in the EPO" (OJ 1989, 417) and from previous decisions that, if oral proceedings did not take place and the decision was based solely on grounds on which the parties concerned had had an opportunity to present their

comments, a decision could be taken without further notice upon expiry of the period allowed to the patent proprietor for submitting observations.

In T 914/98 the board stated that the **seventeen-day** period which elapsed between the appellants receiving the reply of the respondents and the handing over of the decision to the EPO internal postal service was manifestly **too short** to give the appellants an adequate opportunity for comment. According to the board, in view of the case law the appellants could not reasonably have expected a decision to be issued so quickly.

However, the board in T 2243/18 held that there was no requirement in the EPC for the opposition division to wait for further submissions of the parties after the notice of opposition and the reply of the proprietor have been received. On the contrary, parties should expect the opposition division to prepare the next action (in most cases summons to oral proceedings) at any time after receiving the reply of the proprietor (see notice from the EPO concerning the opposition procedure as from 1 July 2016, OJ 2016, A42, point 3).

6.5. Opportunity to present comments

Art. 113(1) EPC, in which the right to be heard is enshrined, provides that decisions of the EPO may only be based on grounds or evidence on which the parties have had an opportunity to present their comments. The term "grounds or evidence" in Art. 113(1) EPC should not be narrowly interpreted. The word "grounds" does not refer merely to a ground of objection to the application or patent in the narrow sense of a requirement of the Convention which is considered not to be met. The word "grounds" should rather be interpreted as referring to the **essential reasoning, both legal and factual**, which leads to the findings of the decision (see e.g. T 951/92, OJ 1996, 53, with regard to a refusal of the application, T 433/93, with regard to the finding of invalidity and revocation, and T 1056/98 with regard to inadmissibility; on the right to be heard, see also chapter III.B.).

In T 293/88 (OJ 1992, 220) the board found that the decision of the opposition division to revoke the patent without issuing any communication in advance disregarded the fact that the validity of the **uncontested claims** 7, 9 and 10 had not been challenged at all, and a further opportunity to fall back at least to such position was reasonably to be expected in such circumstances. The onus of raising such related additional matter with the parties was on the opposition division under Art. 113(1) EPC – which it had not done in this case (distinguished in T 463/93; see also T 2094/12).

In T 558/95 the opposition division had issued two written communications before the oral proceedings stating that, "in the provisional opinion of the opposition division", the subject-matter described in the public prior use did not prejudice the contested patent within the terms of Art. 100(a) EPC. The patent proprietor therefore found it "surprising" that detailed consideration was given to the public prior use during the oral proceedings. However, the board held that **provisional opinions** of this kind were not binding on the further proceedings.

The opposition division that rejects an opposition as **inadmissible** without providing a reasoning prior to its decision prevents the opponent from responding with comments, thus violating the right to be heard (T 1056/98).

Normally, where a document has been sent to one of the parties, that party is given sufficient time to respond thereto before a department of the EPO takes a decision (T 263/93; see above in this chapter IV.C.6.4). If the case is to be **remitted to the department of first instance** for further prosecution, the recipient of a document still has, in view of the remittal, the opportunity to contest the arguments put forward by the other party (see T 832/92).

Under Art. 113(1) EPC, the opposition division must expressly give the parties an opportunity to present observations **after remittal** to it of a case by a board of appeal for further prosecution on the basis of new evidence, even if submissions with respect to this new evidence have already been made during the preceding appeal proceedings (see T 892/92, OJ 1994, 664; see also T 769/91). In T 120/96 another board shared this view and added that the term "opportunity" in Art. 113(1) EPC could only be given effective meaning by applying the principles of good faith and the right to a fair hearing. For such an opportunity to exist, it is necessary that the parties be expressly asked whether or not they wish to present, within a fixed period of time, their comments, or if, as in the case at issue, the parties have already made detailed submissions during the previous appeal proceedings, whether or not these submissions should be regarded as complete. On these grounds alone, the board found that the immediate termination of the opposition proceedings following the remittal, without any intervening communication announcing the resumption of proceedings, was inconsistent with Art. 113(1) EPC.

In T 1027/13, the board held that the categorical refusal of the opposition division to allow the accompanying person to make oral submissions or even communicate with the opponent's representative had in effect been keeping the opponent from taking a position in an "efficient and effective manner" on the contentious issues of the case. It was thus not in line with the principles stated in G 4/95 (OJ 1996, 412; on these principles see also chapter III.V.5.2).

6.6. Change in composition of opposition division during opposition proceedings

For the implications of a change in the composition of the opposition division for the party's right to be heard, see chapter III.K.1.3.2.

7. Acceleration of opposition proceedings in the case of pending infringement proceedings

In cases where an infringement action in respect of a European patent is pending before a national court of a contracting state, a party to the opposition proceedings may request accelerated processing. The request may be filed at any time. It must be filed in written reasoned form. In addition, the EPO will also accelerate the processing of the opposition if it is informed by the national court or competent authority of a contracting state that

infringement actions are pending (Notice of the EPO dated 17 March 2008, OJ 2008, 221; Guidelines E-VIII, 5 – March 2022 version).

The case underlying T. 290/90 (OJ 1992, 368) involved seven oppositions. One of these was deemed not filed, and the opponent appealed against the decision issued in respect of it under R. 69(2) EPC 1973 (R. 112(2) EPC). The patent proprietor requested accelerated processing of the appeal because an infringement action was pending and, in view of the probable number of infringing products on the market, the longer the opposition proceedings took, the more difficult it would be to enforce the patent if maintained. According to the board, a "raison d'être" for obtaining and maintaining a patent was to enforce it where appropriate. The timing of enforcement proceedings could be of real importance and delays could be prejudicial to the proprietor's interests and those of his competitors. In the case of infringement proceedings the speedy processing of opposition proceedings in respect of the relevant European patent became especially important. It was therefore important to decide quickly not only on the appeal but also on the complete substantive opposition. In the case of multiple oppositions, as here, the board considered, in view of the suspensive effect of the appeal, that the opponent (appellant) should be treated as having duly filed an opposition unless and until the board decided otherwise. With an appeal concerning the existence or admissibility of one of the oppositions, the examination stage of the opposition proceedings should be prepared and processed in parallel, with the participation of all the opponents, up to the point when it was ready to be decided: as soon as the appeal was decided, the opposition could also be decided.

See also chapter V.A.1.5. "Accelerated processing before the boards of appeal".

8. Decisions of opposition division

8.1. Revocation of a European patent for failure to fulfil formal requirements – by way of decision

It had been held in T. 26/88 (OJ 1991, 30) that the revocation of the patent for failure to fulfil the formal requirements of paying the printing fee and filing the translations of the amended claims (Art. 102(4) and (5) EPC 1973; R. 82(3), second sentence, EPC) had occurred by operation of law ("automatically").

However, according to G. 1/90 (OJ 1991, 275), the revocation of a patent under Art. 102(4) and (5) EPC 1973 **required a decision**. The Enlarged Board compared the ways of terminating proceedings provided for at various stages under the EPC and concluded that the wording of the regulations clearly indicated in each case whether a decision or a communication had to be issued concerning the loss of rights under R. 69(1) EPC 1973 (R. 112(1) EPC). It also considered the issue of legal certainty and, in the light of the "travaux préparatoires", discussed the question of when a loss of rights noted in accordance with that provision became non-appealable. It found that the procedure of pronouncing revocation by way of a decision led neither to legal uncertainty nor to misunderstandings. See also T. 1403/16 for a more recent decision emphasising (in the context of the applicability of Art. 122 EPC), for all three possibilities pursuant to Art. 101 EPC to terminate opposition proceedings (revocation of the patent, rejection of

the opposition and maintenance of the patent as amended), that the opposition division had to deliver a decision within the meaning of Art. 106(1) EPC. This also applied to R. 84(1) EPC.

8.2. Interlocutory decisions

8.2.1 General

In case T. 376/90 (OJ 1994, 906) the opposition division had held that the opposition was admissible in an interlocutory decision within the meaning of Art. 106(3) EPC 1973 (Art. 106(2) EPC), i.e. a decision which did not terminate the proceedings as regards one of the parties, without, however, **allowing separate appeal**. In the board's view, according to the clear language of the provision, such an interlocutory decision could only be appealed together with the final decision, unless the decision allowed separate appeal. Whether to allow a separate appeal was within the **discretion** of the opposition division. This discretion had been properly exercised by the opposition division with a view to enabling a decision on the substantive issues to be reached as soon as possible.

8.2.2 Maintenance of European patent as amended

The long-established practice of the EPO of delivering interlocutory decisions subject to appeal when the opposition division intends to maintain a patent as amended was acknowledged by the Enlarged Board of Appeal in G. 1/88 (OJ 1989, 189).

According to Art. 101(2) and (3)(a) EPC (Art. 102(1) to (3) EPC 1973) a decision on an opposition to a European patent can involve revocation of the patent, rejection of the opposition or maintenance of the patent as amended, the latter requiring the publication of a new European patent specification. Under R. 82(2) EPC (R. 58(5) EPC 1973) a prerequisite for maintenance of the patent as amended is that the fee for publishing (former printing fee) be paid. With these regulations in mind, the EPO very early on adopted the device of an interlocutory decision, for which there is no express provision, in order to establish in the first place the text of the amended specification. Only after this interlocutory decision has become final (or the case has been decided on appeal) are the fee for publishing (formerly printing) and a translation of the claims in the other official languages requested pursuant to R. 82(2) EPC (R. 58(5) EPC 1973). Additionally, as of 1 May 2016 a typed version of the amended text passages is requested where during oral proceedings only handwritten amendments have been filed (R. 82(2) EPC as in force since 1 May 2016, OJ 2016, A22). Once these requirements have been fulfilled what is then a non-appealable final decision on maintenance of the patent as amended is given and the new patent specification is published.

An interlocutory decision which determines the text of the patent to be maintained as amended can of course only be given if there is a text "submitted or agreed" by the patent proprietor pursuant to Art. 113(2) EPC.

In T. 390/86 (OJ 1989, 30) the board held that neither Art. 102(3) EPC 1973 (which partly became Art. 101(3)(a) EPC and partly was incorporated in R. 82 EPC) nor